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At a Crossroads: Israeli Policy on UNIFIL

Assaf Orion

Recent weeks have witnessed a change in the public position on the United Nations Interim Force in Lebanon (UNIFIL) among high ranking IDF personnel. Senior IDF officers have addressed Hezbollah's military activity in Lebanon, regarding both the Iranian-supported production of weapon systems in Lebanon and open, provocative intelligence gathering along the Blue Line. Prominent in this context was an exchange between IDF Deputy Chief of the General Staff Major General Aviv Kochavi and UNIFIL Commander Major General Michael Beary on June 11, 2017 during the visit to Israel by US Ambassador to the UN Nikki Haley. It was reported that after Beary praised the quiet in his Area of Responsibility, and said that there was no need for a change in UNIFIL activity in the sector, Kochavi took issue with this statement, saying that the Lebanese army was preventing UNIFIL forces from entering built-up areas, thereby abetting the continuation of Hezbollah activity in populated terrain. It was later reported that Israel discussed with Haley the possibility of passing a new UN Security Council resolution on distancing Hezbollah from the border with Israel and expanding UNIFIL's mandate to enforce UN Security Council Resolution 1701, which is the basis of the force's authority. Rhetoric peaked when senior IDF officers were quoted with their exceptionally harsh criticism of UNIFIL, describing the crisis of relations as follows: "UNIFIL assists Hezbollah...there is no point in UNIFIL battalions remaining in the theater. They do more harm than good. They do what Hezbollah tells them to do. They don't dare raise their heads and carry out their duties...so now it is time for them to vacate the area." Insofar as they reflect the view of the defense establishment and the Israeli government, these various cumulative statements attest to a change in the Israeli policy of the past decade.

The gaps in the enforcement of Resolution 1701 are not new; they have been typical of UNIFIL since it was reestablished following the Second Lebanon War and was expanded from 2,000 to 12,000 troops. Since the situation stabilized after the war, Hezbollah has shaped the rules of the game in South Lebanon, while exploiting the fears of the countries contributing forces to UNIFIL that fear attacks against their soldiers □ such as the

Hezbollah attack against a Spanish battalion in June 2007 in which six soldiers were killed □ were they to be too diligent in the execution of their mission. The basic principle for interpreting the UNIFIL mandate, whereby UNIFIL only assists the Lebanese government, i.e., the Lebanese army, in exercising its sovereignty in the area, has been maintained, and serves as a regular explanation for UNIFIL's failure to take independent action.

Reports by the UN Secretary General submitted to the UN Security Council since February 2016 are marked by consistent statements and patterns from the past decade. The UN welcomes the calm in the area and praises the success of the coordination and liaison mechanisms in preventing incidents and in solving current problems along the border, such as repairing infrastructure and violations by Lebanese farmers and shepherds. UNIFIL, which has over 10,500 soldiers, as well as hundreds of civilian and local employees, has carried out over 13,000 missions (patrols and observations) per month; one tenth of these were reportedly accompanied by representatives of the Lebanese army, which has two divisions deployed in the sector. UNIFIL's Maritime Task Force hails thousands of vessels per quarter and the Lebanese navy conducts hundreds of searches, without any reported findings. The UN emphasizes in its reports the volume of activity (inputs), at the expense of quality (outputs), and congratulates itself on the calm between the sides as the ostensible result of its efforts.

Concurrently, the force reports regular activity by "civilian photographers" (i.e., Hezbollah fighters not in uniform) along the Blue Line, including crossings to the Israeli side, and a host of incidents in which organized "civilians" harassed "a few" UNIFIL patrols, blocked them, attacked them with poles and stones, damaged vehicles, threatened them with weapons, and confiscated electronic equipment and maps. The incidents are often described in UN jargon as "unfriendly behavior," and sometimes "threatening," but they are specifically not classified as prohibited military activity, and not attributed to Hezbollah. In the past, incidents also occurred in which UNIFIL soldiers were wounded, but it is difficult to find any indications in the reports of the incidents that UNIFIL soldiers are willing to use force, even in self defense. There have also been repeated appeals by UNIFIL to the Lebanese army and government, which are responsible for ensuring the safety of UNIFIL's soldiers, whereas a few of the attacks against UNIFIL took place in the presence of the Lebanese army or its intelligence officers.

Regarding Hezbollah's weapons, the core issue at the heart of Resolution 1701, the reports cite (in the same language in every report) the IDF's claims concerning Hezbollah's "alleged" military infrastructure and activity in South Lebanon. They likewise describe the UNIFIL inspection regime, and note that "In accordance with its mandate, UNIFIL does not proactively search private property for weapons in the south

unless there is credible evidence of a violation of resolution 1701 (2006), including an imminent threat of hostile activity from that location. Where specific information is received regarding the illegal presence of armed personnel, weapons or infrastructure inside its area of operations, UNIFIL, in cooperation with the Lebanese Armed Forces, remains determined to act with all means available within its mandate and capabilities. To date, UNIFIL has neither been provided with, nor found, evidence of the unauthorized transfer of arms into its area of operations.” This wording remained unchanged, even after dozens of rocket attack incidents against Israel from South Lebanon, including the anti-tank missile attack in January 2015 (in which two IDF soldiers killed) and rocket attack in December 2015. Evidently, UNIFIL consistently avoids using force to carry out its mandate, and even entering and searching “privately owned” properties and areas. This was also the case when several Hezbollah weapons depots in South Lebanon exploded, and when UNIFIL itself encountered armed activists. UNIFIL likewise refrained from acting even when precise information was given to it by the IDF on many occasions, including in real time.

The UN report of November 2016 includes both complaints by the Israeli ambassador to the UN about Hezbollah’s arms buildup, and statements by Hezbollah leaders about the organization’s arming itself with rockets with Iran’s assistance, obviously in blatant violation of UN Security Council resolutions. However, despite the two rival sides agreeing that Hezbollah’s arms buildup is a fact and actual phenomenon, the UN report took cover in legalese formulations, stating that the UN “The United Nations takes the allegations seriously, particularly given the statements by the Secretary General of Hizbullah, but is not in a position to verify them independently.” The sections of the report dealing with forbidden weapons in South Lebanon are accordingly deliberately focused on minor matters, such as weapons possessed by hunters and illegal shooting at weddings and funerals.

This state of affairs clearly reflects the security situation in South Lebanon, in which Hezbollah has consolidated an extensive military capability, deters UNIFIL from exposing it, and recently has made less effort to conceal it. For its part, the UN is unwilling to acknowledge this situation officially and address it in its reports, let alone in the use of its forces.

Israel’s goals in this context with respect to Lebanon remain primarily as they were: preventing attacks against Israel, postponing the next conflict, slowing and limiting Hezbollah’s arms buildup (including as part of Iranian influence), preserving its relations with the international community, and creating legitimacy for Israel to act when needed. In light of these goals, Israel currently has five main alternatives for action: (a) efforts to promote effective enforcement of Resolution 1701 and the UNIFIL mandate; (b)

continuation of the existing situation; (c) reduction of the size of UNIFIL forces; (d) removal of UNIFIL forces, while leaving its mission headquarters and its coordination and liaison offices; (e) termination of the UNIFIL mission and presence in Lebanon.

The feasibility of the first alternative is questionable, since the political circumstances will not allow a change in the UNIFIL mandate, and the countries contributing forces to UNIFIL will not be inclined to incur growing risks to carry it out. At the same time, the Trump administration has been more active at the United Nations, including measures to reduce the budget it allocates to the UN and its peacekeeping forces. The United States pays for 30 percent of the UN's \$8 billion peacekeeping budget, and wants to cut this substantially. UNIFIL's annual budget over the past decade averaged \$515 million. The UN assessment team recently recommended fewer ships and \$13 million less for UNIFIL, but the United States aims to cut over \$100 million. These circumstances, and the support of the current United States administration, create a more convenient context for a discussion of Israel's demands from UNIFIL and the UN.

Clearly senior IDF officers oppose the second alternative, but it is difficult to conclude from the reports whether their goal is to improve UNIFIL's performance, adjust its deployment of forces to its unwillingness to use them, cut the force back, or terminate its mission □ or some combination of those.

In analyzing the alternatives, it is necessary to assess the effect of each alternative on the following aspects: Hezbollah's room for maneuver following a possible change in UNIFIL, relations between Hezbollah and the Lebanese army, Israel's legitimacy in general and in the context of a future conflict in Lebanon in particular, Israel's relations with the countries contributing troops to UNIFIL, the makeup of the UNIFIL forces and the proportion of leading Western armies among the force, the IDF's military freedom of action in routine times and in an emergency, the willingness of the international community to assume a stabilizing role in Israel's environment in the future, and perhaps most important, the possibility that any change initiated by Israel will be perceived as deliberately aimed at escalation, and will bring the next conflict closer.

In conclusion, since 2006, UNIFIL forces have successfully performed their mission of reducing friction between the IDF and Lebanon by means of the coordination and liaison mechanism, thereby contributing to the preservation of calm and preventing unintended escalation. At the same time, UNIFIL has consistently refrained from dealing with the most significant and flagrant violation of UN Resolution 1701 – the military consolidation and ongoing activity by Hezbollah in UNIFIL's Area of Responsibility. The likelihood of a change in Resolution 1701, the UNIFIL mandate, or its *modus operandi* in the foreseeable future is slim. Accordingly, it is appropriate to devise an

updated, balanced, and realistic policy as to the most desirable situation in Lebanon from Israel's perspective, beyond mere statements in the media.

Even if Israel has decided to seek to reduce UNIFIL's forces in Lebanon, adapting its size to the nature of its activity, it is important to conduct a professional and objective discourse through the appropriate channels with the UN headquarters and the friendly countries contributing troops to UNIFIL, and in close coordination with the United States, which has recently changed its attitude toward United Nations institutions and operations. It is doubtful whether the highly critical public statements by senior IDF officers in this context promote Israel's goals on the northern front or among its partners in the international theater.